

Rakesh Srivastava v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 4 April 2016 · WRIT - C No. 13788 of 2016 · **Writ disposed; petitioner left to pursue the domestic-connection application under clauses 4.4 and 4.8.**

HEADNOTE

Mandamus for immediate issue of a domestic electricity connection is refused on the merits where clauses 4.4 and 4.8 of the U.P. Electricity Supply Code, 2005 already cover the application. The petitioner may pursue that application; the competent authority shall act in accordance with law.

FACTUAL SUMMARY

Rakesh Srivastava sought a mandamus that respondent no. 3 issue a domestic electricity connection forthwith at House No. 121 B, Generalganj, Tehsil Sadar, District Mathura. The High Court did not enquire into occupancy, title, or any Code default. After disposal on 4 April 2016, the petitioner obtained an amendment and a correction so that the prayer described the premises as House No. 1218 rather than 121 B.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

processing of new domestic connection application

HOLDING

Clauses 4.4 and 4.8 of the U.P. Electricity Supply Code, 2005 contain sufficient provisions to cover a request for a domestic connection. The writ petitioner is left to pursue the application, and the competent authority shall take action in accordance with law. ¶ 1

PRINCIPLE TAGS

clause-4.4-occupant-connection-on-indemnity-bond Mandamus for immediate issue of a domestic electricity connection is refused on the merits where clauses 4.4 and 4.8 of the U.P. Electricity Supply Code, 2005 already cover the application. The petitioner may pursue that application; the competent authority shall act in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED ON THE MERITS TO A DOMESTIC CONNECTION AT THE MATHURA PREMISES

The Court neither granted nor refused the connection; it left the application to be processed under clauses 4.4 and 4.8. ¶ 1